

FOREIGN.....DEPARTMENT
POLITICAL.....BRANCH
.....Controlling Agency

A.

1864

CONSULTATION.....Jany.....

No. 248-250

Subject...Treaty of 1856 between Persia...

and Muscat relative to the

form of Bunder Abbas.....

Previous reference

Later reference

Muscat Treaty.

No. 248. From W. H. HAVELOCK, Esq., Officiating Secretary to Government, Bombay, to the Secretary to Government of India, in the Foreign Department, Fort William,—(No. 62, dated the 26th December 1863.)

IN consequence of the receipt of your letter, No. 263, dated the 15th May last, an application was made to Mr. Badger for a copy of the Treaty between Persia and Muscat relating to the farm of Bunder Abbas, an authentic version of which document appears to have been obtained by that gentleman while temporarily in charge of the Muscat Zanzibar Commission.

2. I am now directed to transmit copy of a letter from Mr. Badger, dated the 1st September last, enclosing transcript of a communication addressed by him to this Government from Aden, No. 10, dated the 5th June 1861, to which a translation of the Treaty between Persia and Muscat relative to the farm of Bunder Abbas is appended.

3. This latter communication was duly received in Bombay and referred to Captain Felix Jones, Resident in the Persian Gulf, for any explanation which he had to offer with reference to the allegations contained in it respecting his public conduct and proceedings in the Persian Gulf.

4. Captain Jones's reply and the other papers connected with the subject appear subsequently to have been mislaid.

5. In transmitting copies of Mr. Badger's letters dated the 1st September last and the 5th June 1861, I am desired to state, for the information of the Government of India, that before their receipt by His Excellency in Council it had been intimated to Captain Felix Jones that he would not be re-appointed to his office as Resident in the Persian Gulf after the completion of 35 years of service, which were completed on the 14th July 1863.

No. 249. From REVEREND G. P. BADGER, to H. L. ANDERSON, Esq., Chief Secretary to Government, Bombay,—(dated London, 17, Dawson Place, Bayswater, the 1st September 1863.)

IN reply to your letter No. 2307 of 1863, I have the honor to inform you that a copy of the Treaty referred to in the original Persian, together with an English translation of the same from an Arabic version, furnished me by His Highness the Sultan of Muscat, was posted by me at Aden as the Appendix to an official letter to the address of the Acting Chief Secretary to Government on the 5th June 1861.

To provide against the possibility of that letter having miscarried (though I can hardly conceive such an accident probable), I forward you herewith a complete copy of the same, with the exception of the Persian draft of the Treaty, of which I have no transcript, having transmitted to Government, as above stated, that handed to me by Seyyed Thoweynee.

From REVEREND GEORGE PERCY BADGER, in charge Muscat Zanzibar Commission, to A. K. FORBES, Esq., Acting Secretary to Government, Bombay,—(No. 10, dated Aden, the 5th June 1861.)

It is not of choice that I am made the medium of forwarding to Government the list of grievances contained in the accompanying letter (Appendix

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A.) from the Sultan of Muscat, neither in doing so is it my object to pronounce an opinion on the validity or otherwise of the charges which are therein brought against Captain Jones. The Hon'ble the Governor in Council will doubtless give His Highness's communication that attention which it deserves, and judge of its contents with impartiality and justice: but the occasion affords me a fitting opportunity for venturing a few remarks on our past and present policy in the Persian Gulf; and deeming myself bound, in the responsible position in which Government has been pleased to place me for the time being and in the interests of the public service, not to withhold information which may be useful to the State, I trust that the following observations may meet the approval of the Hon'ble the Governor in Council:—

2. It is a subject of general notoriety that the Arab tribes in the Persian Gulf are greatly dissatisfied with the proceedings of the Resident at Bushire and his native agents on the coast. The Chiefs complain that his assumption of authority over them is arrogant in the extreme, and that his *surveillance* far exceeds the limits of the intervention which they were induced to accord to the British Resident by the Treaty of May 1853, and that they are reduced thereby to a state of the most abject submission to his absolute control. Mr. Rassam informs me that several Chiefs from the Gulf came to Muscat for the purpose of laying their grievances in these respects before Brigadier Coghlan; Mr. Rassam prudently declined seeing them, and they had left before my arrival at Muscat: the universal complaint is that Captain Jones's treatment of them is most arbitrary, and that they have no means of redress. A report, they say, is transmitted to the Resident by one of his native agents (whose characters, by the way, are lightly spoken of), that a Chief or member of a certain tribe has trespassed on some other tribe, and forthwith a man-of-war is dispatched to the place to levy a fine on the alleged culprits. This interference, they assert, is not confined to reputed outrages by sea, but extends to their mutual relations on shore, and that punishment is not preceded by full and impartial investigation.

3. I cannot vouch for the truth of these statements, but I can testify to a general feeling of discontent prevailing among the Arabs owing to our actual policy in the Persian Gulf: the system of fines is carried out to a very questionable extent, Chiefs and tribes being largely mulcted by the Resident for trivial offences and payment extorted under menace. Very lately the young Chief of Debaye was fined 100 dollars for firing from his fort on the buteel of another tribe with which he was at variance as it passed along the coast; another was obliged to pay 300 dollars on the charge of having plundered a flock of sheep from a neighbouring territory: last year also the old Chief of the Joasem was summoned before Captain Jones, who insisted on his immediate payment of a similar fine; in this instance, however, on the money being paid, a present of greater value was bestowed upon the Chief,—a singular proceeding to say the least of it. Some idea may be formed of the extent to which the system is carried from the fact—well known, of course, to the Government—that there are at this moment several thousand dollars in the Residency treasury at Bushire, collected from the fines levied in the Persian Gulf.

4. I fully concur in the necessity of stringent measures to curb the turbulent and warlike spirit of the maritime Arab tribes, as well for the security of our trade in the Persian Gulf, as for the general prosperity of the inhabitants themselves. I am also aware that, by the Treaty of May 1853, several of the Arab Chiefs in the Gulf have agreed to the arbitration of the British Resident at Bushire under certain circumstances. Article III. of that Treaty is as follows:—

“That, in the event of an act of aggression being committed at sea by any of those who are subscribers with us to this engagement upon any of our sub-

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jects or dependants, we will not proceed immediately to retaliate, but will inform the British Resident or the Commodore at Bassadore, who will forthwith take the necessary steps for obtaining reparation for the injury inflicted, provided that its occurrence can be satisfactorily proved."

The wording of this Article is fairly susceptible of conferring on the Resident an almost unlimited right of intervention in the maritime affairs of the subscribing Chiefs, but in the opinion of the latter they thereby constituted the Resident a mediator or arbitrator between them, and not a penal judge over them. They allege that they understood his intervention to be restricted to cases of common plunder or piracy on the seas, and, moreover, that they never intended it to apply to their mutual transactions on shore, or to deprive themselves thereby of the right of engaging in legal hostilities with their enemies either by sea or land.

5. I leave it with Government to decide how far the Arabs are justified in their interpretation of the Article above quoted, and how far the Resident may be deemed to have exceeded the powers intended to be conveyed by its provisions. My own strong conviction is, from extensive personal experience with Arab tribes, as well as from all I have heard of that particular locality, that the influence of the British Resident in the Gulf would be far more generally beneficial if his proceedings were carried on in a more courteous and conciliatory spirit, and his arbitrations coupled with fewer exactions. In the actual temper of the maritime Chiefs the presence of any other naval power in the Persian Gulf would be hailed by them as a welcome opportunity for breaking off all friendly relations with the British.

6. In proof of this latter remark, I may instance the case of the Sheikh of Bahrein, who is not a party to the Treaty of 1853. Government is doubtless aware of the extraordinary proceedings of that Chief in having recently placed himself first under the protection of Persia and then of Turkey. Commander Cruttenden informs me that in an interview which the Sheikh sought with him at Bahrein and in the presence of the native British Agent, he declared that his simple motive for having appealed to those foreign powers was in order to rid himself of the unwarrantable interference of Captain Jones with the internal affairs of his Government, and to be protected against any repetition of the arrogant treatment which he had received at his hands; contrasting it at the same time with the consideration and deference which had always been manifested towards him by preceding Residents at Bushire.

7. It will be perceived from the attached letter from Seyyed Thoweynee that His Highness also has had cause to complain of similar unjustifiable officiousness. I am unable to offer any opinion on the real merits of the Coomzar case, referred to by His Highness, but Government is aware that a similar case occurred lately, when Captain Jones sent a threatening letter to the Chief of that place (which is within the territory and jurisdiction of Seyyed Thoweynee), enclosing copy of another which he had forwarded to His Highness, wherein he tells the latter that he shall fine each of the boats reported to have been engaged in an alleged outrage on an adjoining town in the sum of fifty dollars, and that he purposes dispatching the Persian Gulf Squadron to enforce it. On further examination, however (carried on by Commander Cruttenden, then senior Officer in the Gulf), it was fully proved that no outrage whatever had been committed: such wanton and unauthorized invasion of the prerogative of an independent prince with whom we are in friendly alliance is much to be deprecated, and His Highness Seyyed Thoweynee has urgently begged that Government will protect him from similar insult in future.

8. But I proceed in the next place to notice more particularly the serious consequence which in his letter to my address Seyyed Thoweynee attributes to the indiscriminate prohibitory power exercised by the Resident in the Persian Gulf. I see no reason to doubt His Highness's statement that, on the occasion

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referred to, the Beni Yas were prohibited under the usual threats from proceeding to join Seyyed Saeed's forces: the motive was probably an apprehension of piracy, for I cannot believe that any British functionary, unless so ordered, would designedly have played into the hands of the Persians against our faithful ally the Sultan of Muscat. Nevertheless, such is averred to have been the result of the Resident's interference: Seyyed Saeed was obliged to conclude a Treaty with the Persians on terms most disadvantageous to himself, and in many respects most unfavorable to ourselves: the annual charge for the farm of Bunder Abbas was raised from 6,000 to 16,000 tomans, and the islands of Ormuzd and Kishm, to which the Sultan had a just hereditary claim, and on the latter of which our naval station has existed for nearly a century with the sanction of successive rulers of Muscat, were ceded to the Persians. By this Treaty, moreover, Seyyed Saeed binds himself and his successors to hold Bunder Abbas against all comers, and not to allow the Agent of any foreign Government to pass there; whereas by our Treaty with the Sultan of Muscat in 1798 that sovereign felt himself competent to grant us the privilege of building and arming a fort at Gombroon and of keeping a garrison there.*

* See *Persian Gulf Selections*, page 249.

9. I procured from Seyyed Thoweynee a copy of the Treaty of 1856 between the late Seyyed Saeed and the Persian Government, and attach it herewith (Appendix B.), together with an English translation made from an Arabic version, which was also given to me by His Highness. My impression is that this document has never yet been submitted to Her Majesty's Government, and I, therefore, beg to draw the particular attention of the Hon'ble the Governor in Council to the obvious purport of several of its stipulations, which, taken in conjunction with the policy of Persia in the Gulf and to the eastward of her land frontier, are suggestive of ulterior designs in those quarters. It is well known that the Persians meditate a military occupation of Bahrein, and the Sheikh of that island, dreading the consequences of his late foolish appeal to Persia, has very recently written to engage Seyyed Thoweynee on his side, offering him the sovereignty of the island, rather than that it should fall into the hands of the Persians: this fact was told me by His Highness himself. It is further reported that the Persian Government has purchased four ships-of-war in Europe, and that they are shortly expected at Bushire, where the Shah intends to inspect them. These movements obviously indicate an attempt on the part of Persia to establish a supremacy over the tribes in the Gulf. Meanwhile, by Article XIII. of her late Treaty with Muscat, the naval forces of the Sultan are engaged to defend her line of coast from Bunder Abbas to Jashk, including the islands of Ormuzd and Kishm, against attack from all quarters.

10. Viewed in connection with the advance of the Persian army towards the eastward of Kirman, the stipulation contained in Article IX. of the Treaty under notice is equally suggestive of further meditated encroachment in that direction. That Article distinctly provides for the passage of troops through Bunder Abbas towards Mekran, Beloochistan, and even Cutch (Gondaba), that is, in a line towards the Indus, which may eventually be found more practicable than any more northern route. The Persians have already reduced the Ameer of Bolaide, whose territories extend about sixty miles along the coast, and placed the province of Geh under tribute. According to credible information collected at Muscat, they have also advanced from Bulpore and occupied Serbaz, completely routing the Beloochees. To the south they are reported to be in force as far as Nusserabad, having subjugated all the country to the westward, and to be meditating an attack on Kedge, the capital of the Khan of Khelat's Mekran territories; while on the north they have very lately retaken the district of Dizzeh from Azzad Khan, a firm ally of the Dost, and are acting in concert with the Jam of Herat and Afzul Khan, who are said to be marching in force on Candahar. The report communicated by Major Green respecting this latter movement was confirmed to me at Muscat by several Beloochee

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Chiefs, apparently well acquainted with the course of current events in Mekran and Beloochistan.

11. Whilst hesitating to attach any serious or immediate political consequences as regards British interests in the east to these encroachments of Persia in Central Asia, I nevertheless deem the subject of sufficient importance to evoke the vigilance of Her Majesty's Government; and as regards the proceedings of the same power in the Persian Gulf, I respectfully submit that they supply a strong motive for the adoption on our part of a vigorous yet discreet policy, such as may tend to conciliate the maritime Arab tribes in that quarter and confirm them in their attachment to the British Government.

APPENDIX A.

From HIS HIGHNESS SEYYED THOWEYNEE, Sultan of Muscat, to REVEREND GEORGE PERCY BADGER, Commissioner of the British Government,—(written on the 4th Elkaada 1277, the 15th May 1861.)

WE are induced to inform you, in order that you may communicate the same to the British Government, that in the year 1271 (1855-1856) there was war between us and the Persian Government about Bunder Abbas; and that on that occasion, when we called upon the Arabs, who form the principal strength of our army, and who have been our allies from the remotest time until now, namely, the Beni Yas, who inhabit Aboothaby and Debaye, Captain Jones, the Resident, interfered, and forbade their joining us at Bunder Abbas, and his letter to that effect is still preserved by the Beni Yas. On account of this prohibition our late father was obliged to yield to the Persians and to concede all their demands, unwillingly consenting to the terms of the Treaty which was then drawn up between them and His Highness. Thereon our late father, Seyyed Saeed, returned to Muscat, from whence he subsequently proceeded to Zanzibar, intending on his arrival there to complain to the British Government of Captain Jones, whom he regarded as the cause of his being obliged to succumb to the Persians. Seyyed Saeed did not live to reach Zanzibar, and you are well acquainted with our affairs since that period, and are aware that we have had no opportunity of preferring a complaint on the subject to the British Government. We therefore avail of the present occasion to make this statement to you, in order that you may submit the matter to the British Government, and that they may be cognizant of what was done by their Agent, and how we became thereby bound to the Persians: part of our territory has been alienated from us, and the tribes, if called upon, would not join us, for, were they to do so, they would be fined.

Again, in the year 1274 (1858), Captain Jones went to our territory at Coomzar and exacted a fine from its inhabitants; we judged, of course, that the people of Coomzar were to blame and deserved punishment: nevertheless, is it proper that Captain Jones, without reference to us and without our knowledge, should levy fines from our subjects?

When we subsequently met him at Bunder Abbas we requested him to restore the fine, and he promised to forward the amount from Bassadore. On his arrival there we sent our man Hilal to him for the purpose, but he neither returned the fine nor sent us any reply, and thus the matter stands at present.

Again, we have to complain of the conduct of Captain Jones towards our deputy, Sekr bin Abdallah, when he absconded from Kishm without our knowledge, and proceeded first to Bushire and then to Bassadore. On that occasion Captain Jones wrote to inform us that Sheikh Sekr had appealed to him, but that he had declined to interfere between him and me. On the receipt of that letter we dispatched our man Derweesh to Bassadore to take Sheikh Sekr back to his own place, with directions to seize his vessel in the

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event of his contumacy. When our man Derweesh reached Bassadore, Sheikh Sekr refused to obey our orders, and the former accordingly proceeded to seize his ship; whereupon Khodadad, who is there on the part of Captain Jones, interfered and prevented him, obliging him to return to Muscat without it, whereby our dignity was lowered in the eyes of our people. Subsequently we received another letter from Captain Jones, apologizing for the conduct of Khodadad on the ground of his inexperience and ignorance in such matters, and stating that he would have displaced him had it not been that he was an ignorant and incapable individual. Surely a man who is thus avowedly incapable should not be placed by Captain Jones in a place where he can do such things; for our part we feel confident that the British Government will not approve of such proceedings, and hence we have judged it fit to make these things known to you, in order that you may be fully aware of our situation, and that some arrangement may be made in our behalf with regard to such matters; for, indeed, we and our territories are suffering much damage from such measures as these pursued against us. May you be preserved in safety.

From your loving friend.

APPENDIX B.

Treaty between His late HIGHNESS SEYYED SAEED and the Persian Government relating to Bunder Abbas, &c., translated from an Arabic version supplied by His HIGHNESS SEYYED THOWEYNEE, Sultan of Muscat,—(written in the month of Shaaban 1272 (1856).

DRAFT of the conditions to be required of the Imam of Muscat by the Ministers of the kingdom of Iran. On his acceptance of the same the Government of Bunder Abbas and its dependencies, as also of the two maritime islands,* together with Eiseen, Jazian, Shemeel, Minan, and Biyaban, places belonging to the Supreme Government, may be given to any Arab Chief whom His Highness the Imam may appoint thereto for the space of the twenty years during which the said places are to be under his administration.

Article 1.—The Governor of Bunder Abbas shall be subject to the Supreme Government, and shall render obedience to the Governor of Shiraz; he shall, moreover, give a written declaration to the Ministers of the State that he is under the jurisdiction of the Government of Iran.

* The sum charged for the farm.

† i. e., per annum.

Article 2.—The amount of the Maliyat,* the gratuity to the Sadr-el-Azam, and the presents to the Shiya-ool-Moolk, shall be as follows†:—

Maliyat	...	...	...	12,000 tomans.
† Gratuity to the Sadr-el-Azam	...	2,000	„	
„ to the Governor of Shiraz	...	1,500	„	
† „ to the Shiya-ool-Moolk	...	500	„	

† These sums still exacted, though the offices are reported to have been abolished.

In all, 16,000 tomans.

Article 3.—The ditch round Bunder Abbas shall be filled up with earth, and no other ditch shall be dug there.

Article 4.—For the space of twenty years the selection of the Governor over Bunder Abbas and the other places above named shall be vested in the Imam and his sons; at the expiration of the said twenty years these countries must be restored to the Ministers of the State in a prosperous condition, and it shall rest with them to decide whether they shall again be made over to him (the Imam) or not.

Article 5.—The flag of the State, with a certain number of men to guard it, and also an Officer to see that the flag is respected, shall be maintained (at Bunder Abbas); also a special courier, who shall bring the Government Des-

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patches to Bunder Abbas every month; and on festivals and on the birthdays of the Shah a salute shall be fired; a gun shall also be fired at sunrise and at sunset throughout the year.

Article 6.—The subjects residing in the above-named places, who are now under the Governor of Bunder Abbas, but who were latterly in the service of the State§ shall not be molested in any way, neither shall they be subjected to any annoyance, but shall be treated with all kindness.

§ This refers to some who took part against the late Seyyed Saeed during his late expedition to Bunder Abbas.

Article 7.—The Governor of Bunder Abbas shall not interfere in any way beyond the limits of Bunder Abbas and of the places named in the Treaty of the late Khakhan Feth Aleeh Shah.

Article 8.—Should the Governor of Shiraz, or the Governors of Laristan, see fit to visit any of the above-named places, either for pleasure or on hunting excursions, they shall receive the courtesies and compliments due to Governors.

Article 9.—Should the Governors of Fars or the Governors of Kirman on any important occasion wish to dispatch troops towards Cutch, or Mekran, or Beloochistan, they shall be treated with the respect due to Governors, and shall be supplied with provisions, guides, and escorts.

Article 10.—Should the Governor of Shiraz have cause to complain of the conduct of the Governor of Bunder Abbas, the Imam of Muscat, on being informed thereof, shall, without any excuse, immediately remove him, and shall appoint another person in his place, who shall also be subject to the Governor of Shiraz, as were the Governors who preceded him.

Article 11.—Should any of the subjects of Laristan, or of Es-Sebaa, or of any part of the province of Fars, or any of the subjects of Kirman, take refuge within any of the above-named limits, the Governors of those places, on being apprised thereof, shall send them back to their respective homes.

Article 12.—This Treaty regarding Bunder Abbas, and all the conditions therein set forth, are to be held as restricted to the person of Seyyed Saeed, who is now living, and to his children, and as applicable to them and to them only: should any other rule over Muscat, Bunder Abbas and the islands are not to be his, but they are to be at the disposal of the Ministers of the State.

Article 13.—Whilst Bunder Abbas, and Shemeel, and Minan, and the two maritime islands, shall be in the hands of any Officer of the Imam of Muscat, he shall not give passage there to any agent of the foreign Governments, but he shall engage to guard and protect the above-named places both by sea and land. And wherever there is a safe anchorage in any of the places under his jurisdiction, he shall maintain ships-of-war there, always ready to prevent the entrance of any foreign enemy, and shall especially guard against treachery at all times and by all available means; and further, he shall not suffer any enemy from among the Arabs or from any foreign State to enter the above-named limits; and should they attempt to enter the soil of Iran, he shall not permit it, but shall prevent their doing so.

Article 14.—The Imam of Muscat has not the right to make over Bunder Abbas and the other places above named to any foreign Government, or to any other parties, even under the foregoing conditions. The jurisdiction over them is confined to himself personally, to those appointed by him, and to his kinsmen, subject to the conditions above set forth.

Article 15.—The Banyan who farms the customs of Muscat shall not levy any Duty on goods which do not enter Muscat, and which are taken to India or elsewhere.

Article 16.—The property seized at Kishm* shall be sent to Bunder Abbas and shall be made over to Abdool Mahomed, the head of the merchants, who shall send it to Bushire, in order that it may be restored to its owners at Teheran.

* During the late war between Seyyed Saeed and the Persians.

*Coll. A July 1863 - N^o 21/4
— " — Aug^t 1864 - N^o 96/3*

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FOREIGN DEPARTMENT.

POLITICAL.—A.

No. 62.

From

Offg. Secy. to Govt., Bombay.

Dated 26th December 1863.

Recd. 5th January 1864.

Proceedings, January,
Nos. 248, 249.

With reference to No. 263, dated 15th May last, transmits copies of letters from Mr. Badger, dated 1st September last and 5th June 1861, with a translation of the Treaty between Persia and Muscat relative to the farm of Bundar Abbass, and informs that, before the receipt of the above two letters from Mr. Badger, it had been intimated to Captain Felix Jones that he would not be re-appointed to his office as Resident in the Persian Gulf after the completion of 35 years of service, which was completed on 14th July 1863.

Dearth and cost of food in the Goonah District.

No. 250. From COLONEL H. M. DURAND, C. B., Secretary to Government of India, Foreign Department, to the Officiating Secretary to Government, Bombay,—
(No. 72, dated Fort William, the 22nd January 1864.)

I HAVE the honor to acknowledge the receipt of your letter, dated 26th ultimo, No. 62, forwarding a copy of the Treaty between Persia and Muscat relative to the farm of Bunder Abbas.

2. With reference to Captain Jones's removal from the office of Resident in the Persian Gulf, touched upon in the last paragraph of your letter, I am directed to state that the Governor General in Council abstains from expressing any opinion on that point, as he is not in possession of any explanation or defence on the part of Captain Jones.

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POLITICAL.—A.

No. 72.

To

Offg. Secy. to Govt., Bombay.

Dated 22nd January 1864.

Proceedings, January,
No. 250.

Acknowledges receipt of his No. 62, dated 26th ultimo, sending copy of the Treaty between Persia and Muscat relative to the farm of Bunder Abbas, and states that, in the absence of any explanation or defence on the part of Captain Jones, the Governor General in Council abstains from expressing any opinion regarding his removal from the office of Resident in the Persian Gulf.